

TRANSCRIPT OF PROCEEDINGS

THE PEOPLE OF THE STATE OF NEW YORK

v.

LUIGI MANGIONE

Defendant.

Indictment No. 75657-24
Advance Calendar from May 18th

APPEARANCES

For the People:

JOE SEIDEMANN, KRISTEN BAILEY, and ZACHARY KAPLAN

For the Defendant:

KAREN FRIEDMAN AGNIFILO, MARC AGNIFILO, and JACOB KAPLAN

PROCEEDINGS

THE CLERK: Good morning. This is calendar number 1, as to Luigi Mangione, indictment number 75657-24 from the back. This is an advance from May 18th. May I have your appearances, please.

MR. SEIDEMANN: Joe Seidemann, Kristen Bailey and Zachary Kaplan on behalf of the People. Good morning, your Honor.

MS. FRIEDMAN AGNIFILO: Karen Friedman Agnifilo and Jacob Kaplan on behalf of Mr. Mangione. Good morning, your Honor.

THE COURT: All right. Good morning. So it appears that the Federal Government has reneged on their agreement to allow the state that did most of the work in this case to go first in that the judge set a September date, which is a date that the parties here all agreed would be a good date. So we must — at least this case got simpler in that it should be shorter, and it's no longer a terrorism case, and things changed in federal court as it's no longer a death penalty case. So, and it's not that complex as the facts in this case.

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So, with that in mind, I'm going to set an earlier date than the Federal Government of June 8th for trial. If the Federal Government appeals Judge Garnett's ruling, then we will start on September 8th.

MR. SEIDEMANN: That's acceptable to the People. Thank you.

MS. FRIEDMAN AGNIFILO: Your Honor, Mr. Mangione is being put in an untenable situation, because this is a tug of war between two different prosecution offices, and it is not Mr. Mangione's position to have to try this case in the middle of the federal case which has already been set for trial.

On April 17, 2025, April of last year, Judge Garnett indicated that she wanted to set a firm trial date in 2026, and these are two separate cases.

In December 18th of this year, Mr. Seidemann put on the record that he wanted this case to go first because he was worried about Mr. Thompson's 77-year-old mother. That's on page 1475 of the transcripts in this case. Judge Garnett was very aware of the fact that Mr. Seidemann wanted his case to go first.

On January 9th, Judge Garnett said she wanted to start this trial in June or July. We indicated that that was too soon. We could not be ready in June or July. That's on page 90 of the transcripts there. So she set a September 8th trial date in federal court.

On January 30th, we appeared before Judge Garnett, and we informed her of Mr. Seidemann's letter to the Court requesting a July 1st date. She said she was already aware of the letter, that she had read the letter, and she still kept her September 8th trial date.

And in addition to that, your Honor, after that she said she was aware of that, she set an order where we are starting, in earnest, we are starting April 13th to start working on jury questionnaires. They're calling almost between 800 and a thousand jurors are going to have to come for this case because of the publicity in this case.

May 4th we have to submit our questionnaires to the Court it proposed. May 11th, we have to file objections. May 26th, our objections are due — I'm sorry, opposition —

THE COURT: You don't have to give me the whole schedule. It's obvious that Judge Garnett also wants that case, the federal case to go first based upon that.

MS. FRIEDMAN AGNIFILO: Okay, your Honor.

THE COURT: I don't need to hear any more about scheduling.

MS. FRIEDMAN AGNIFILO: There are multiple appearances and dates in June and July and August. We will be on trial in that case beginning in April; therefore, we will not be available June 8th.

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Mr. Seidemann wants this case to go forward because he does not want the potential of his case being double jeopardied out because he did all the work on this case.

THE COURT: All the work? So did NYPD. So did a lot of agencies here in New York County.

MS. FRIEDMAN AGNIFILO: And NYPD will be testifying. They will be front and center testifying in the federal case. They will have the opportunity to show all the hard work that they did.

THE COURT: I have no doubt they will. Okay. June 8th.

MS. FRIEDMAN AGNIFILO: Your Honor.

THE COURT: Unless the Federal Government appeals the ruling.

MS. FRIEDMAN AGNIFILO: The defense will not be ready on June 8th.

THE COURT: Be ready.

MS. FRIEDMAN AGNIFILO: And it is absolutely unfair that Mr. Seidemann wants two bites of the apple, because that's what is happening here.

New York State has a double jeopardy law for a reason, and it is utterly unfair that they are trying to get two bites of the apple to try to prosecute this young man. We have a firm federal date, and that's what we intend to do.

MR. SEIDEMANN: Your Honor, let's just say that counsel is seeking to jeopardy us out of the case. They're seeking to deprive the prosecuting agency on a local crime, a murder that happened in Midtown on our streets of a guest to our city.

This has been the reason for their delays, hoping that if it goes after the federal case, by the New York statutory double jeopardy would be jeopardied out.

We have every reason to be the prosecuting authority as well as the fact that United States v. Warren, which was mentioned in our omnibus papers which counsel's aware of, states that the party that issues the arrest warrant first goes first.

That decision, which I'll proffer up to the Court and counsel is something that binds this court as well as the federal court.

This is a delay that they're seeking to lock the courtroom to deprive us of our right to try this case.

I'll say another thing. The family of the victim has requested from Mr. Gentile that the state case go first. Now, the Court isn't bound, obviously, by the desires of Pat Thompson, the 78-year-old mother or brother Mark, but that's something certainly to be considered.

I would like to give up to the Court United States v. Warren which by the way is a federal case not only binds as to who goes first, but binds the federal district court judge as well. And I proffer one to counsel as well.

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MS. FRIEDMAN AGNIFILO: One moment, your Honor. I just want to respond.

THE COURT: By the way, Judge Garnett is open to hearing any application by the defense about which trial will go first.

MS. FRIEDMAN AGNIFILO: Your Honor, it would be legal malpractice for us to ask the Court to do something that is not in our client's best interest. Of course if there's an opportunity for a double jeopardy, that is our legal obligation to do, and that is what we're going to do.

THE COURT: June 8th.

MS. FRIEDMAN AGNIFILO: Your Honor, I just want to respond to what Mr. Seidemann said about we are delaying things. We have been working around the clock in earnest in both cases and fighting both cases. We've been submitting multiple motion papers that are hundred page long.

And in fact, our motion papers have actually been successful. We got your Honor to dismiss the terrorism case. We recently got two counts removed, so he's no longer facing death and execution. We are not sitting around twiddling our thumbs —

THE COURT: You've done a great job, so be ready on June 8th.

MS. FRIEDMAN AGNIFILO: As I said, your Honor, we are not going to be ready on June 8th.

THE DEFENDANT: It's the same trial twice. One plus one is two. Double jeopardy by any commonsense definition.

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Certified to be a true and accurate transcript.